

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUWM059579: JOSHUA YOUNG vs CITY OF SAN BUENAVENTURA, et al.

07/31/2026 in Department 40

Motion to Seal Portions of the Administrative Record

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Petitioner was a police officer with the City of San Buenaventura (the "City") for several years. In 2016, Petitioner filed for Industrial Disability Retirement ("IDR") through the California Public Employees' Retirement System ("CalPERS"). In 2017, CalPERS approved Petitioner's IDR benefits. In 2023, CalPERS determined that Petitioner was not eligible for IDR benefits, informed Petitioner that the benefits would be cancelled, and demanded reimbursement of benefits that had already been paid to him. Petitioner appealed CalPERS's decision. In 2025, an Administrative Law Judge heard the matter. In connection with the Office of Administrative Hearings proceedings, the Administrative Law Judge sealed Exhibits B, C, and D. Further, CalPERS filed "Exhibit 18," a personnel investigation report that was "initiated by the City" and concerned allegations of Petitioner's misconduct. (Opp. 3:10-11.) Petitioner did not object to the admission of Exhibit 18 into evidence at the OAH hearing. (*Ibid.* at 3:13-14.) Ultimately, the Administrative Law Judge upheld CalPERS's decision to cancel Petitioner's benefits and seek reimbursement of funds paid. On January 5, 2026, Petitioner filed a Petition for Writ of Mandate in this Court to challenge CalPERS's decision.

On July 1, 2026, Petitioner filed the instant Motion to Seal Portions of the Administrative Record, seeking to seal Exhibits B, C, and D, and Exhibit 18. The City filed a Notice of Non-Opposition. CalPERS does not oppose the sealing of Exhibits B, C, and D, but opposes the sealing of Exhibit 18.

I. Legal Standard

In *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178 ("*NBC Subsidiary*"), the California Supreme Court held that trial courts cannot close civil proceedings to the public, or seal the records of such proceedings, except upon noticed hearing and findings that an "overriding interest" favors closure and cannot be adequately protected by any means less derogatory of the public's right of access to court business. There, the Court held in relevant part that "before substantive courtroom proceedings are closed or transcripts are ordered sealed, a trial court must hold a hearing and expressly find that (i) there exists an overriding interest supporting closure and/or sealing; (ii) there is a substantial probability that the interest will be prejudiced absent closure and/or sealing; (iii) the proposed closure and/or sealing is narrowly tailored to serve the overriding interest; and (iv) there is no less restrictive means of achieving the overriding interest." (*Ibid.* at pp. 1181-1182.) "To effectuate the principles embodied in *KNBC*, the Judicial Council adopted rules 2.550, 2.551, and 8.160." (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 888.) Thus, under California Rules of Court, rule 2.550(c), "[u]nless confidentiality is required by law, court records are presumed to be open."

Under California Rules of Court, rule 2.550(d), the court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes

the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Further, California Rules of Court, rule 2.550(e) states: “(1) An order sealing the record must: (A) Specifically state the facts that support the findings; and (B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file . . .”

II. Analysis

Petitioner argues that Exhibit 18 should be sealed because it is a confidential peace officer personnel record, pursuant to Penal Code section 832.7. (Memo. 4:22-5:7.) CalPERS counters that “Exhibit 18 is a public record, filed during a public administrative hearing, and is subject to public observation and disclosure.” (Opp. 4:6-7, 4:27-28.) CalPERS further posits that Petitioner waived any right to seal Exhibit 18 since it was publicly filed in the administrative hearing without objection. (Opp. 5:1-11.) These competing contentions are analyzed below.

A. Exhibit 18 Is A Public Record

As CalPERS notes, there is a First Amendment right of public access to civil litigation documents filed at trial for the adjudication of a case. (*KNBC, supra*, 20 Cal.4th at 1208–1209, fn. 25.) This principle applies to administrative hearings. (Gov. Code, § 11424.20, subd. (a).) These principles are not in dispute.

Additionally, as CalPERS articulates, the public has the right to review public records. This right is set forth in the California Public Records Act (Government Code sections 7920.000, *et seq.*) (the “CPRA”). A “public record” includes “any writing containing information relating to the conduct of the public’s business prepared, owned, used, or retained by any state or local agency regardless of physical form or characteristics.” (Gov. Code, § 7920.530, subdiv. (a).) A local agency includes a city. (Gov. Code, § 7920.510, subdiv. (b).) Since Exhibit 18 is a personnel investigation report that was “initiated by” the City, Exhibit 18 is a public record.

B. Exhibit 18 Is A Confidential Peace Officer Personnel Record

In enacting the CPRA, the Legislature declared that “access to information concerning the conduct of the people’s business is a fundamental and necessary right of every person in this state.” (Gov. Code, § 7921.000.) However, “[t]he right to obtain public records is not absolute.” (*Copley Press, Inc. v. Superior Court* (2006) 39 Cal.4th 1272, 1282.) In fact, when enacting the CPRA, the Legislature expressly stated that it was “mindful of the right of individuals to privacy.” (Gov. Code, § 7921.000; see also *Copley, supra*, 39 Cal.4th at 1282.) The dual concern for disclosure of public records and privacy appears throughout the CPRA and relevant case law. (*Copley, supra*, 39 Cal.4th at 1282.) Accordingly, several types of documents are expressly exempt from disclosure under the CPRA.

Among the exemptions, are “[r]ecords, the disclosure of which is exempted or prohibited pursuant to federal or state law, including, but not limited to, provisions of the Evidence Code relating to privilege.” (Gov. Code, § 7927.705.) Moreover, the CPRA lists numerous statutes with disclosure exemptions. (Gov. Code, §§ 7930.000, *et seq.*) Among the listed statutes are Penal Code sections 832.7 and 832.8. (Gov. Code, § 7930.180.)

Penal Code section 832.7, subdivision (a), provides that “the personnel records of peace officers and custodial officers and records maintained by a state or local agency pursuant to Section 832.5, or information obtained from these records, are confidential and shall not be disclosed in any criminal or civil proceeding except by discovery pursuant to Sections 1043 and 1046 of the Evidence Code” (which sets for the procedures for disclosure of confidential peace officer records through a *Pitchess* motion).

It is undisputed that Exhibit 18 is a “personnel investigation report.” As such, it is a confidential peace officer record under Penal Code section 832.7, subdivision (a). (See also Gov. Code, § 7930.180; *Copley, supra*, 39 Cal.4th at 1283.)

CalPERS argues that “[a] public record must be disclosed unless ‘. . . disclosure of a particular item of information would endanger the safety of a person involved in an investigation or would endanger the successful completion of the investigation or a related investigation.’ (Gov. Code, § 6254, subd. (f).)” (Opp. 4:15-18.) That is not an accurate interpretation of the law. As stated above, the CPRA contains numerous express exemptions to disclosure, many of which do not pertain in any manner to the safety of persons involved in investigations. (Gov. Code, §§ 7930.000, *et seq.*)

Moreover, the full text of the statutory provision cited by CalPERS is as follows.

Notwithstanding any other provision of this article, a state or local law enforcement agency shall make public all of the following information, except to the extent that disclosure of a particular item of information would endanger the safety of a person involved in an investigation or would endanger the successful completion of the investigation or a related investigation:

- (a) The full name and occupation of every individual arrested by the agency.
- (b) The individual’s physical description including date of birth, color of eyes and hair, sex, height, and weight.
- (c) The time and date of arrest.
- (d) The time and date of booking.
- (e) The location of the arrest.
- (f) The factual circumstances surrounding the arrest.
- (g) The amount of bail set.
- (h) The time and manner of release or the location where the individual is currently being held.
- (i) All charges the individual is being held upon, including any outstanding warrants from other jurisdictions, parole holds, and probation holds.

(Gov. Code, § 7923.610.) This provision pertains to arrest records and is not applicable here.

For the reasons set forth above, the court finds that Exhibit 18 is a confidential peace officer record, subject to sealing under the express terms of Penal Code section 832.7, subdivision (a).

C. Petitioner Did Not Waive Confidentiality Of Exhibit 18

CalPERS argues that even if Exhibit 18 is a confidential record, Petitioner waived his right to seek an order sealing it because it was publicly filed in the Office of Administrative Hearings proceedings and is publicly available there. (Opp. p. 5-6.)

“Although courts frequently define ‘waiver’ as the intentional relinquishment of a known right, waiver may also stem from conduct ‘which, according to its natural import, is so inconsistent with an intent to enforce the right as to induce a reasonable belief that such right has been relinquished.’ [Citations]. Whether a waiver has occurred is a factual question, tested on appeal under the substantial evidence rule.” (*Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 598.) “Further, irrespective of the waiver, the trial court lacked discretion to entertain a belated motion to seal.” (*Id.* at p. 601.)

As Petitioner notes, there is no evidence that Exhibit 18 has been made public. (Reply, 1:22-26.) CalPERS’s offered two pieces of evidence to establish that Exhibit 18 has been made public: Attachments 5 and 6 to the Kaur Declaration, which are transcripts referencing Exhibit 18. The transcripts referencing Exhibit 18, however, are not public disclosure of Exhibit 18 for waiver purposes. A similar issue arose in *Pasadena Police Officers Assn. v. Superior Court* (2015) 240 Cal.App.4th 268. There, police officers filed excerpts from their own deposition transcripts in a federal court action without a protective order or order sealing the documents, then sought to seal the confidential personnel report referenced in their deposition transcripts in a state court action. (*Pasadena Police Officers Assn., supra*, 240 Cal.App.4th at p. 293.) There, the Court held:

But the officers’ public revelation of confidential information does not constitute a waiver as to privileged information in the Report. [Citation.] The fact that information in an officer’s personnel records may also be found in an unprotected sources does not impact the confidentiality of the personnel records themselves. The *Pitchess* statutes create a privilege for all information in peace officers’ personnel files without regard to information found elsewhere. [Citation.] The purpose and policy of the *Pitchess* statutes mandates that waiver of the privilege must be express. This is true even where, as here, the officers themselves placed the information in the public domain. Absent an express waiver of the privilege with respect to the confidential personnel information found in the Report, the officers retain *Pitchess* protections as to that information, even if the information is the same as or similar to information available elsewhere in the public domain. [Citations.]

(*Ibid.* at p. 293-294.)

As to CalPERS’s arguments regarding delay, Exhibit 18 has not been filed with this Court unlike the documents in *Savaglio v. Wal-Mart Stores, Inc., supra*, 149 Cal.App.4th 588.

Therefore, the Court finds that Petitioner has not waived his right to confidentiality of Exhibit 18.

III. Conclusion

The Court finds/order as follows.

The Court adopts Petitioner’s findings under California Rules of Court, rule 2.550(d), and orders Exhibits B, C, and D (pp. 397-434 of the Administrative Record” and Exhibit 18 (pp. 94-106 of the Administrative Record) sealed.